

1 Next, the party having the power to produce
2 better evidence.

3 You may consider the ability of each party to
4 provide evidence. If a party provided weaker evidence
5 when it could have provided stronger evidence, you may
6 distrust the weaker evidence.

7 Failure to explain or deny evidence.

8 If a party failed to explain or deny evidence
9 against him when he could reasonably be expected to
10 have done so based on what he knew, you may consider
11 his failure to explain or deny in evaluating that
12 evidence.

13 It is up to you to decide the meaning and
14 importance of the failure to explain or deny evidence
15 against the party.

16 I am not sure this happened, but evidence was
17 admitted for a limited purpose. During the trial,
18 certain evidence was admitted for a limited purpose.
19 I am not sure this instruction applies, but if it
20 does, you may consider that evidence only for that
21 purpose and for no other.

22 Use of interrogatories of a party.

23 Before trial, each party has the right to ask
24 the other parties to answer written questions. These
25 questions are called interrogatories.

26 The answers are also in writing and are given
27 under oath. So you must consider the questions and
28 answers that were read to you the same as if the